

Chapter 517

ELDER CARE

§ 517-1.	Definitions.	§ 517-2.	Notice of Credit Reporting Agency Act provisions required; violations and penalties.
		§ 517-3.	Financial exploitation of facility residents prohibited; liability for costs.

[HISTORY: Adopted by the County Council of Allegheny County 7-1-2009 by Ord. No. 27-09.¹ Amendments noted where applicable.]

§ 517-1. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings described under this section unless the context clearly indicates otherwise:

FACILITY — Any nursing home or similar assisted-living facility established for or actually providing care to individuals aged 60 or over that is licensed by the Commonwealth of Pennsylvania for that purpose and which is located within Allegheny County.

FACILITY EMPLOYEE — Any individual employed in any capacity by any facility for any compensation of monetary value, regardless of total compensation amount, benefit value, or full-, part-time, temporary or permanent employee status.

LEGAL REPRESENTATIVE — An attorney-in-fact under a valid power of attorney executed by the prospective resident of a facility, or a conservator or guardian appointed for the prospective resident of a facility, or a representative payee appointed for the prospective resident, or other agent of limited powers.

RESPONSIBLE PARTY — A person who has access to the resident's income and assets and who agrees to apply the resident's income and assets to pay for the resident's care or who agrees to make and complete an application for medical assistance on behalf of the resident.

§ 517-2. Notice of Credit Reporting Agency Act provisions required; violations and penalties.

- A. Notice of the provisions of the Credit Reporting Agency Act² relating to security freezes of consumer credit reports shall be provided to all individuals residing in a facility as of the effective date of this chapter within 10 days of such effective date. Notice of the provisions of the Act pertaining to security freezes shall also be provided to all future facility residents at the time of admission.
- B. Failure to provide the notice required under the terms of this section shall constitute a summary offense by the owner or individual in control of the facility, punishable, upon conviction, by a fine of up to \$250. For the purposes of this section, each day upon which notice is not provided shall

1. Editor's Note: This ordinance was adopted as Ch. 575, but was renumbered to fit into the organization of the Code.

2. Editor's Note: See 73 P.S. § 2501 et seq.

constitute a separate offense.

§ 517-3. Financial exploitation of facility residents prohibited; liability for costs.

In the event that a legal representative, responsible party, or facility employee knowingly fails to spend any resident's assets or income appropriately for the purpose of obtaining medical assistance, the legal representative, responsible party, or facility employee shall be liable to the facility for the resident's costs of care which are not paid for by medical assistance. A legal representative, responsible party or facility employee shall be personally liable only to the extent the resident's income or assets were misapplied.